



Notification Waiver Determination

AustralianSuper – IFM Global Infrastructure (Australia) Trust

Acquisition	AustralianSuper Pty Ltd as trustee for AustralianSuper (AustralianSuper) applied for a notification waiver in respect of its proposed acquisition of additional interests in the IFM Global Infrastructure (Australia) Trust (IFM GIAT), a feeder fund to the IFM Global Infrastructure Fund (GIF Master Fund), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	12 May 2026

Parties to the Acquisition	The acquirer, AustralianSuper, is an Australian industry superannuation and pension fund. It offers its members services relating to superannuation, investment, retirement, and insurance. It has over 3.6 million members and manages over \$410 billion in funds (as at 31 December 2025). The target, IFM GIAT, is a fund established for the purpose of investing in the GIF Master Fund. The GIF Master Fund is a global infrastructure fund that invests in long-duration, illiquid core infrastructure assets across transport, utilities, energy transmission and digital infrastructure. Both AustralianSuper and GIF Master Fund have interests in Sydney Airport. AustralianSuper also has an interest in Perth Airport.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - the increment to AustralianSuper's existing interest in IFM GIAT, and the GIF Master Fund, is small - while there is common ownership between AustralianSuper and GIF Master Fund's investments in Sydney Airport, the increment to AustralianSuper's existing interest is very small

	c. while there is cross-ownership between AustralianSuper's interests in Sydney Airport and Perth Airport, there is limited competition between airports. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**